

Answer Key for Practice Midterm

Part I: Multiple Choice

1. C.

A 12(b)(6) motion will allow the school to argue that Pat has failed to state a claim on which relief can be granted, on the ground that the school's conduct cannot, legally, violate the First Amendment. The Complaint, in other words, is legally insufficient, and we can make that argument through a 12(b)(6) motion.

2. D.

The school, once again, wants to argue that Pat failed to state a claim on which relief can be granted. But the school can't file a 12(b)(6) motion, because it already filed its Answer. And it is past the 21-day window to amend the Answer as a matter of course under Rule 15.

However, according to Rule 12(h), the defense of failure to state a claim can also be raised through a 12(c) motion for judgment on the pleadings. A 12(c) motion argues, essentially, that in light of both parties' pleadings (the Complaint and the Answer), the moving party must win the case. So here, the school can file a 12(c) motion for judgment on the pleadings, arguing that based on the Complaint and the Answer, it is clear that Plaintiff cannot win the case because the First Amendment does not apply to a private school.

3. B.

The report is likely work product under Rule 26(b)(3)(A), which includes material that is prepared by a "party or its representative" for litigation, and "representative" can include an "insurer." This report was also prepared for litigation. So unless something happened to the slide to make the slide itself unavailable for inspection (and Plaintiff already had somebody examine the slide), Plaintiff likely cannot demonstrate sufficient need to overcome the work product protection and get fact-work-product in the report.

However, the work product protection does not prevent discovery of the underlying facts. So plaintiff can depose the insurer and ask if it was a Waterslides Co. slide.

4. B.

The strategy memo looks like work product, as it represents the attorney's opinion about the case, prepared for litigation. So it is not discoverable under Rule 26(b)(3)(A). However, it was inadvertently disclosed when the lawyer accidentally turned it over to

the other side. So we need to think about inadvertent disclosure.

FRE 502 covers inadvertent disclosures during discovery. And FRE 502 provides that a disclosure does not waive the work-product protection if, among other things, “the holder of the privilege or protection took reasonable steps to prevent disclosure.” So the question is, did Waterslide Co.’s lawyer take reasonable steps to prevent disclosure?

To my mind, it’s pretty hard to say that Waterslide Co.’s lawyer took reasonable steps to prevent disclosure! The lawyer pretty negligently dropped the memo onto a stack of papers, then handed the whole stack of papers over in a hurry because they felt rushed. That doesn’t look like exercising reasonable care to avoid accidentally disclosing the memo, so a court would likely not order clawback of the memo.

5. C.

Here’s a rough IRAC’d version of the answer, at around 540 words:

The issue is whether to grant either party’s motion for summary judgment.

At summary judgment, we view the evidence in the light most favorable to the non-moving party, and summary judgment should be granted if there are no genuine disputes of material fact and the moving party is entitled to judgment as a matter of law. We are dealing with cross-motions for summary judgment, so we need to view the evidence favorably to each party, and ask what inferences can reasonably be drawn from the evidence in each party’s favor.

When thinking about entitlement to judgment as a matter of law, we need to know what the relevant substantive law is. Here, the substantive legal standard, from the First Amendment, is a “substantial disruption” of school activities. So we’re asking whether, on the basis of the evidence from discovery, a reasonable jury could find that there was a substantial disruption (or whether no reasonable jury could find that there was a substantial disruption).

Applying that standard, I recommend denying both parties’ motions for summary judgment.

Start with the school’s motion for summary judgment. For this, we have to ask what the evidence looks like in the light most favorable to P.L. Based on the deposition testimony from the 10 friends, if a jury found them to be credible, then the jury could reasonably conclude that there was only a “brief” and “calm” discussion as the students were filing into class. That almost certainly cannot be a “substantial disruption.” So P.L. could win the case, by showing that there was not a substantial disruption. The school therefore shouldn’t get summary judgment.

Next, turn to P.L.’s motion for summary judgment. For this, we have to look at the evidence in the light most favorable to the school. Seen in that light, based on the deposition testimony, if a jury found the algebra teacher credible, then the jury could reasonably conclude that there was a

“heated argument” about P.L.’s Snap for most of the class on November 1.

Specifically, the students testified that they discussed the Snap on November 1 at the opening of algebra class. And the algebra teacher said that the argument in class was on November 1, though the teacher did not know for sure what the argument was about. Because the dates and the class overlap—the students and the teacher were all talking about algebra class on November 1—a jury could reasonably infer that even though the teacher didn’t know whether the argument was about a “Snap,” the argument that occurred in class that day was in fact about the relevant Snap. And according to the algebra teacher, that argument was a “heated argument” that lasted for “most of the class.” That would seem to be a “substantial disruption” of school activities, since it prevented a class from occurring. Therefore, the school could win the case, so P.L. shouldn’t get summary judgment.

Ultimately, then, the court should deny both motions for summary judgment and send the case to trial. There is a genuine dispute about the material facts regarding how long and how intense the discussion of the Snap was. We therefore need a jury to decide whether to believe the students’ testimony or the teacher’s.

Part II: Essay Question

[This is a model IRAC’d answer, of around 650 words. An answer reaching a different conclusion, however, could score well, as I discuss in the notes after the model answer.]

The issue presented is whether the District Court’s order denying the Navy’s motion to seal the documents during discovery is immediately appealable.

Generally, under § 1291, U.S. courts of appeals only have jurisdiction over appeals from “final” decisions by the district courts. But the collateral order doctrine allows immediate appeals for orders that: (1) are conclusive, (2) involve an important issue separate from the merits, and (3) are effectively unreviewable on appeal after final judgment. For the collateral order doctrine, the court evaluates whether the general *type* of order is appealable, rather than asking whether the specific order in a specific case should be appealable. Notably, the Supreme Court has suggested that discovery orders are typically not appealable—but that case did not involve a motion to seal, like this case does. Therefore, in this case, we must evaluate whether orders denying motions to seal confidential material are immediately appealable under the collateral order doctrine.

Here, the District Court’s order to produce the documents without seal is appealable under the collateral order doctrine. All three prongs of the test are met.

(1) The order is conclusive. The trial court has decided the question about whether to seal, and it

has not given any indication that it will reconsider. Moreover, if the Navy complies with the court's order to produce the documents, and if the documents are filed unsealed, the trial court couldn't go back and re-decide the issue, because the confidential documents would already be out in public. Therefore, the order conclusively decides whether the Navy gets an order to seal, so the first prong of the test is met.

(2) The issue is also important and separate from the merits. For the "important" prong, in light of the Navy's statement that the documents involve sensitive national security information, this is surely an important issue. And given that the courts give national security deference to the military in determining what kind of harm something might cause to national security, as in the *Winter* case itself, the court of appeals should likely take seriously the Navy's contention that keeping these documents secret is important.

More broadly, whenever a party seeks to file something under seal, they are asserting that there is some important reason to maintain confidentiality. So a motion to seal generally raises an "important" issue.

Additionally, this order is separate from the merits. The merits question in this case is about whether the marine biologist has a professional interest in the marine mammals, and whether the sonar would harm them. But this discovery order is about whether to seal the documents, given the potential national security risks. The appeals court can decide whether the Navy is entitled to file under seal without having to decide *anything* about the underlying merits of the biologist's case. The second prong of the collateral order test is thus met.

(3) Finally, this order is effectively unreviewable on appeal after a final judgment. The whole point of a motion to seal is that the information being sealed should be confidential. But once the information has been introduced as evidence in court or filed without seal, it is publicly accessible, so it is no longer confidential. And there's really no way to retroactively make it somehow *not* public: The appeals court can't go back at the end of the case and erase the public's memory once the public has been able to access (or copy) confidential documents. So if the trial court was wrong when it denied the Navy's motion to seal, the appeals court can't fix that error later when it reviews the final judgment in the case. The third prong of the test is thus met, too.

In conclusion, with all three prongs of the test met, the trial court's order denying the Navy's motion to seal is immediately appealable under the collateral order doctrine. So the court of appeals has jurisdiction for this appeal.

[Some additional notes on the essay prompt: I tend to think that most courts would allow an immediate appeal under the collateral order doctrine for a Defense Department motion to seal like this one, especially given that the courts often defer to the executive branch in national security cases, like Winter v. NRDC itself.]

On the other hand, the Supreme Court in Mohawk Industries strongly suggested that the collateral order doctrine should be kept narrow, or even pared back (and Justice Thomas essentially advocated for eliminating the doctrine altogether). Moreover, Mohawk Industries was likewise a case about a discovery order. So an essay answer could also do well if it argued that the order in this case should not be immediately appealable. To make that argument:

One would still want to analyze all three prongs of the test, for comprehensiveness. But one would also make the general point that Mohawk Industries emphasizes the narrowness of the collateral order doctrine, and that Mohawk Industries suggests that discovery orders generally aren't immediately appealable. And then for prong 3 of the test, for 'unreviewable on appeal,' one could make the argument, drawing on Mohawk Industries, that the Navy still has other mechanisms to seek immediate review, including certification under § 1292, seeking mandamus, or incurring a contempt order and appealing that. (Indeed, we might be less concerned about forcing the government into a contempt order than about forcing individuals to face contempt in order to appeal, since it's not like having a contempt order on its permanent record would make it harder for the U.S. Navy to, say, apply for a government job.) One could further note that the Microsoft case shows that these alternative routes, such as contempt, are genuinely available to access immediate review, which suggests that there are "effective" ways for the Navy to get review here, even without using the collateral order doctrine.]